

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: September 11, 2026

1	Hull vs. General Motors, LLC 2024-01391953	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The motion of plaintiff Shawn Hull for an order awarding prevailing party attorneys' fees and costs from defendant General Motors, LLC is GRANTED WITH THE EXCEPTION of the request for the application of a multiplier of .10.
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		Plaintiff is awarded attorneys' fees of \$42,883.00 plus costs of \$2020.46. Discussion. Plaintiff Shawn Hull moves for an order awarding prevailing party attorneys' fees and costs as provided in the offer to compromise from defendant General Motors, LLC that he accepted. Specifically, he seeks attorneys' fees of \$42,883.00 plus a multiplier of .10, which would be \$4288.30, for a total of \$47171.30. He also seeks costs of \$2020.46, although he filed a memo of costs claiming this amount at the same time that he filed the instant motion on June 22, 2026. (See ROA 113.) Defendant opposes the motion, first contending that the motion is untimely as not brought within 45 days of dismissal, citing <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644. It also contends that the hours and fees claimed by plaintiff's counsel are excessive and unreasonable and that counsel should be awarded no more than \$11,384.56 in fees and \$716.20 in costs. With respect to defendant's contention that the motion for fees is untimely, <i>Hatlevig v. General Motors LLC</i>, supra, 118 Cal.App.5th 644, states the following at p. 649: Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. [Citations.] A motion for fees incurred up to the time of judgment in the trial court "must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case." [Citation.] With exceptions not relevant to this appeal, the time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. [Citation.] A voluntary dismissal is "effectively a 'judgment' " within the meaning of the rule prescribing the time to appeal. [Citations.] Thus, "the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of
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		judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).” [Citation.] Here, although the parties settled the case, the case has not yet been dismissed. In fact, the Court has set a hearing on an OSC re: settled case to be heard at the same time as the instant motion. The settlement between the parties consists of the statutory offer to compromise that the defendant made on October 10, 2025 and plaintiff accepted on November 10, 2025. (Exhibit 1 to moving papers.) In part, it provides for “[p]laintiff’s attorney’s fees, expenses, and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) [that] may be determined by the Court via noticed motion.” It also provides that, for any such motion, defendant will agree that plaintiff is the prevailing party. Courts use the lodestar method to calculate an award of attorneys’ fees under this subdivision. <i>Mikhaeilpoor v. BMW of N. America, LLC</i> (2020) 48 Cal.App.5th 240, 247 Under the lodestar method, “the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ [Citation.]” <i>Mikhaeilpoor v. BMW of N. America, LLC</i>, supra, 48 Cal.App.5th at p. 247. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. <i>Ibid.</i> The prevailing party and fee applicant bears the burden of showing that the fees incurred were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” <i>Ibid.</i> If the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the
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		court must take this into account and award attorney fees in a lesser amount. Ibid. The amount of attorney fees awarded under the lodestar method may be increased or decreased. Mikhaeilpoor v. BMW of N. America, LLC, supra, 48 Cal.App.5th at p. 247. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” Ibid. However, the trial court is neither foreclosed from nor required to award a multiplier. Ibid. The factors that the trial court may consider in adjusting the lodestar figure include the novelty and difficulty of the questions involved, and the skill displayed in presenting them; the extent to which the nature of the litigation precluded other employment by the attorneys; and the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award. Id. at p. 248. Attorney David N. Barry submitted the billing entries for the attorneys working on the file as Exhibit 1 to his declaration. While he sets forth the billing rates for the various attorneys working on the file in his declaration, the moving papers indicate that these attorneys spent a total of 76.3 hours on the file, as follows: • David N. Barry – 34.4 hours at \$695/hr. • Kristopher Storti -- .8 hour at \$600/hr. • Andrew Materia -- .6 hour at \$550/hr. • C. Richard Lara -- .8 hour at \$375/hr. • Brian J. Kim – 39.7 hours at \$450/hr. To the extent that defendant contends that plaintiffs are seeking excessive fees, the Court’s file shows that the case involved routine hearings as well as hearings on discovery motion. It also indicates that the parties were preparing for trial because motions in limine and oppositions were filed. Viewed in this light, both the number of hours and the billing rate claimed by plaintiff’s counsel are reasonable.
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		On the other hand, nothing in the file suggests that an enhancement is appropriate in this case. Both parties indicate that they regularly litigate in this area of the law. With respect to the issue of costs, as previously noted, plaintiff filed a memo of costs at the same time that he filed this motion. Like the motion, it claims costs of \$2020.46, but defendant did not affirmatively move to strike or tax those costs. ***OSC RE: Dismissal of Settled Case is continued to March 15, 2027 at 9 AM. Moving Party shall give notice of all the above.
2	Landeroz vs. Tustin Hills Healthcare, Inc. 2025-01514947	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint MOTION #1: The general demurrer of defendant Tustin Hills Healthcare, Inc., dba The Hills Post Acute, to the second cause of action for dependent adult abuse and neglect in the second amended complaint of plaintiff Domingo Alcala Landeroz, individually and as the successor-in-interest to The Estate of Maria Del Refugio Alcala Landeros is SUSTAINED, without leave to amend. Discussion. Defendant demurs generally and specially on the ground of uncertainty to the second cause of action in the second amended complaint. Defendant contends that the cause of action, which is brought under the Elder and Dependent Adult Civil Protection Act and seeks enhanced (or heightened) remedies, does not contain sufficient facts to set forth the claim and is not pled with the specificity required for a

		statutory cause of action. Plaintiff opposes the demurrer and contends otherwise. The Elder Abuse Act's heightened remedies are available only in limited circumstances. <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 156. A plaintiff must prove, by clear and convincing evidence, that a defendant is liable for either physical abuse under section Welf. & Inst. Code section 15610.63 or neglect under section 15610.57, and that the defendant committed the abuse with recklessness, oppression, fraud, or malice. <i>Ibid.</i> Section 15610.57 provides two definitions of neglect: (1) the negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise; and (2) the negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise. <i>Winn v. Pioneer Medical Group, Inc.</i>, <i>supra</i>, 63 Cal.4th at p. 156. The statute also contains an explicitly non-exhaustive list of "neglect" examples to complement these definitions; this list includes the failure to assist in personal hygiene, the failure to provide food, clothing or shelter, the failure to provide medical care for physical and mental health needs, the failure to protect from health and safety hazards, and the failure to prevent malnutrition or dehydration. <i>Ibid.</i> The examples contained within section 15610.57 statute "seem to contemplate ... the existence of a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance." <i>Winn v. Pioneer Medical Group, Inc.</i>, <i>supra</i>, 63 Cal.4th at p. 158. Thus, "[t]he Act seems premised on the idea that certain situations place elders and dependent adults at heightened risk of harm, and
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		heightened remedies relative to conventional tort remedies are appropriate as a consequence. [Citation.]” Id. at pp. 158-159. Here, defendant contends that the allegations in the SAC do not show that defendant failed to provide for decedent’s basic needs. Rather, it contends that the allegations relate to failures in security and monitoring of controlled substances and facility visitors and sound in negligence. In opposing the demurrer, plaintiff contends that the SAC contains allegations that defendant failed to provide protective custodial systems necessary to prevent a vulnerable resident’s unauthorized fentanyl exposure. In reply, defendant points out that the SAC relates to one single isolated incident that does not amount to neglect or abuse. In fact, all of the factual allegations in the SAC are contained within the introductory section and incorporated by reference into the three causes of action. Thus, the same factual allegations are offered by plaintiff to support the first cause of action for medical negligence as well as the second cause of action for dependent adult neglect and abuse. These allegations include the following allegations, which appear in paragraphs 3 and 5: At the time Defendant accepted [decedent] as a resident, Defendant received and/or had access to her hospital transfer records, admission materials, physician orders, medication information, and chart information identifying fentanyl as a documented allergy and/or medication to which [decedent] should not be exposed. Defendant’s own order summary listed fentanyl as an allergy, and the coroner investigation later documented that Executive Director Brett Allen confirmed the fentanyl allergy had been imported from the hospital and printed throughout Defendant’s records. ... While [decedent] was in Defendant’s custodial environment and unable to protect herself, she suffered an unwitnessed fentanyl
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		exposure, collapsed in her room was found unresponsive, was transported emergently to the hospital, tested positive for fentanyl despite the absence of any fentanyl order for her at the facility, and thereafter was diagnosed with fentanyl toxicity, anoxic brain injury, and cerebral edema. Plaintiff additionally alleges in paragraph 28 that, by accepting decedent into the facility, defendant "undertook direct custodial duties that included keeping unauthorized persons and unauthorized drugs from reaching her; securing controlled substances; maintaining accurate visitor and room-access records; supervising staff entrusted with resident care and medication access; honoring charting allergy alerts; recognizing significant changes in condition; and responding immediately and appropriately to emergencies involving a medically fragile resident." These allegations make it clear that both the first and second causes of action sound in negligence rather than neglect as that term is used in Welf. & Inst. Code § 15610.57, Therefore, defendant's challenge to the second cause of action is well-taken. MOTION #2: The motion of defendant Tustin Hills Healthcare, Inc., dba The Hills Post Acute, to strike portions of the second amended complaint of plaintiff Domingo Alcala Landeroz, individually and as the successor-in-interest to The Estate of Maria Del Refugio Alcala Landeros, is GRANTED without leave to amend. Discussion. Defendant moves to strike the following portions of the second amended complaint: • paragraphs 57 through 60 in their entirety (item 1 in the notice of motion) • paragraph 4 of the prayer, which asks for an award of attorneys' fees and costs
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		under Welf. & Inst. Code section 15657 (item 2 in the notice of motion) • paragraph 7 of the prayer, which asks for an award of punitive damages “to the extent permitted by law on the dependent-adult abuse claim and any other claim supporting such recovery” (item 3 in the notice of motion) Although paragraphs 57 through 60 are in the introductory portion of the SAC rather than the second cause of action for statutory elder abuse, they are in a section entitled “Allegations Supporting Heightened Remedies and Punitive Damages” and reference the second cause of action. Likewise, the requests for attorneys’ fees and costs and attorneys’ fees reference the second cause of action. In that the Court is sustaining the accompanying demurrer to the second cause of action, these allegations and requests are now extraneous to the viable causes of action in the SAC. Also, the allegations in paragraphs 57 through 60 are conclusory and made on information and belief without specifying the basis for that information and belief. Moving Parties shall give notice of all the above.
3	Ragland vs. Wells Fargo, N.A. 2020-01137118	1. Motion – Other 2. Motion to Strike or Tax Costs Plaintiff’s Motion to Tax Costs Plaintiff Motion to Strike and/or Tax Costs is DENIED. (Cal. Rules of Court, Rules 3.1700 and 8.278; ROA 2333 [Memorandum of Costs on Appeal]; ROA 2330 [Minute Order dated 4/6/26]; ROA 2319 [Remittitur dated 1/22/26].) Plaintiff argues the Memorandum of Costs is not timely. Plaintiff reasons that the Memorandum of Costs was filed more than 15 days from 4/6/26, the date the stay of proceedings was lifted. Cal. Rules of Court,

	Rule 8.278, subd. (c)(1) provides a prevailing party on an appeal 40 days to file a memorandum of costs. Cal. Rules of Court, Rule 3.1700, subd. (b)(3) permits the court to extend the time for the service and filing of a cost memorandum by up to 30 days. On this basis, the Court finds that the memorandum of costs on appeal was timely filed and served. In assessing a motion to tax or strike costs, a burden shifting analysis is used. The cost claimant bears the initial burden of establishing prima facie entitlement to the recovery of costs. The claimant meets its burden if the verified cost bill “appears proper on its face.” (<i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 855; <i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761, 774.) “If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary.” (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Once the opposing party makes such a showing, in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this shift to happen. “[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable.” (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557.) Plaintiff has failed to meet her burden to show that the memorandum of costs as a whole, or any item of costs sought therein is improper. Plaintiff asserts that the cost claimant lacks standing to claim costs because they lack standing to do so. Plaintiff bases this assertion on the various arguments made in
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	her purported motion for an Order to Show Cause. As discussed in greater detail below, the Court finds that the issues raised in that motion have already been decided. In any event, regardless of the cost claimants' standing to defend this lawsuit, the fact remains that defendants Wells Fargo Bank, National Association as Trustee for Structured Asset Securities Corporation, Mortgage Pass Through Certificates, Series 2006-OPT1 (erroneously sued herein as "Wells Fargo Bank, a national corporation") (hereinafter "Wells Fargo"), Ocwen Loan Servicing, LLC, (erroneously sued herein as "Ocwen Financial Corporation")¹, and PHH Mortgage Corporation (collectively, the "Bank Defendants") were the moving parties in the Special Motion to Strike that was the subject matter of Plaintiff's failed appeal. It is also clear that the Court of Appeals ordered in the 1/22/26 Remittitur that these Parties are eligible to recover the costs they incurred defending the appeal. Thus, whatever questions Plaintiff has regarding the overall standing of these Defendants in this litigation and Womble Bond Dickinson's authority to represent them are not relevant to the appellate costs these Defendants currently seek. Plaintiff fails to make any meaningful challenge to the propriety of any of the costs claimed in the memorandum of appellate costs. Each of the costs claimed are explicitly authorized by Cal. Rules of Court, Rule 8.278, subds. (d)(1)(A) and (B) and Plaintiff has failed to demonstrate that the amount of the claimed costs is unreasonable. Additionally, Plaintiff's argument concerning the lease agreement are not persuasive, as Plaintiff has failed to identify any provision of the lease that could serve to override Cal. Rules of Court, Rule 8.278. Accordingly, the Motion is DENIED. Plaintiff Pam Ragland shall pay the Bank Defendants' costs on appeal in the amount of \$4,482.49.
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		Plaintiff's Motion for Order to Show Cause Plaintiff's Motion for Order to Show Cause is DENIED. The Court has already addressed the issues raised in Plaintiff's Motion for Order to Show Cause. (See ROA 1630 [2/14/25 Minute Order].) Any issues regarding Womble Bond Dickinson's representation of the various defendants has been clarified by the filing of appropriate substitutions of attorney. (See ROA Nos. 1655, 1656.) Plaintiff's instant motion is nothing more than an untimely and unsubstantiated attempt to request reconsideration of the Court's prior orders on these issues. Trial shall proceed as scheduled. Plaintiff shall give notice of these rulings.
4	CME International, LLC vs. Aloyan 2025-01455857	Motion to Set Aside/Vacate Default and Judgment Defendants Levon Aloyan and Alshot Aloyan's Motion to Set Aside the Default and Default Judgment is DENIED without prejudice to Defendants seeking relief under Code Civ. Proc. §473, subd. (d). Defendants move for an order setting aside a default entered against them on 5/22/25 and the resulting default judgment entered on 3/25/26 pursuant to Code Civ. Proc. §473, subd. (b). Defendants argue that they timely filed responses to the Complaint, but due to excusable neglect, failed to appropriately serve the same upon Plaintiff. Discretionary Relief Under Code Civ. Proc. §473, subd. (b) To obtain relief from default under Code Civ. Proc. §473, subd. (b), a motion "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. §473, subd. (b).) When seeking discretionary relief under §473, the

		six month period runs from the entry of default and not the date a default judgment is entered. (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 39.) Here, the motion was filed nearly fourteen months after entry of default and is thus untimely. (See ROA 26 and 27 [5/22/25 entry of default] and ROA 65 [7/1/26 date of filing motion for relief from default].) Since the motion has not been made “within a reasonable time, in no case exceeding six months, after the judgment ... was taken”, Defendants are not entitled to relief under Code Civ. Proc. §473, subd. (b). Plaintiff shall provide notice of this ruling.
5	Lanagan vs. Penney OPCO LLC 2025-01516569	Demurrer to Complaint Defendant Penney OpCo, LLC’s demurrer to complaint is SUSTAINED as to the second and third causes of action for violation of Penal Code section 502 and the Unfair Competition Law, and otherwise OVERRULED. Plaintiff T.K.C. Lanagan shall have 10 days leave to file a second amended complaint. First cause of action for Penal Code section 638.51. The complaint states facts sufficient to constitute a cause of action for violation of Penal Code section 638.51. (See Pen. Code, § 638.51; see also Compl. ¶¶ 1-13, 35-37, 45-47, 67-125.) Penal Code section 637.2 explicitly authorizes a private civil cause of action for the violation of Penal Code section 638.51. Penal Code section 637.2 provides that “[a]ny person who has been injured by a violation of this chapter [i.e., Pen. Code, §§ 630-638.55] may bring an action against the person who committed the violation” for \$5,000 per violation or three times his actual damages, whichever is greater. (Pen. Code, § 537.2, subd (a).) Section 638.51 falls within “this

		chapter” covered by section 647.2. (See Pen. Code, §§ 637.2, 638.51 [both sections appearing under chapter 1.5 of title 15 of the Penal Code]; see also id., § 638.51, subd. (d) [setting forth a complete defense to a “civil ... action brought under this section...”].) Penal Code section 638.51, a provision of the California Invasion of Privacy Act (CIPA) known as California’s Trap and Trace Law, is not limited to telephonic surveillance. (See Pen. Code, §§ 638.50, subds. (a)-(c), 638.51, subd. (a); see also id., § 629.51, subd. (a)(2).) A pen register or trap and trace “process” can include tracking software that identifies and gathers consumer IP information and unique user data, including software embedded in a website to collect such visitor information. (Moody v. C2 Educational Systems Inc. (C.D. Cal. 2024) 742 F.Supp.3d 1072, 1076; accord, Zarif v. Hwareh.com, Inc. (S.D. Cal. 2025) 789 F.Supp.3d 880, 898 [Meta Pixel and similar tracking software can qualify as pen register or “trap and trace device”]; Hassid v. Alex and Ani, LLC (C.D. Cal., Jan. 20, 2026, No. CV 25-0679 FMO (JCX)) 2026 WL 160535 at *6 (Hassid); Riganian v. LiveRamp Holdings, Inc. (N.D. Cal. 2025) 791 F.Supp.3d 1075, 1093-1094 [noting “other sections of CIPA specifically do include language regarding telephones,” and “if the drafters of Section 638.50 intended for ‘pen register’ to be limited to telephone technologies, they knew how to say so”].) The complaint sufficiently alleges defendant embedded such tracking software in its website, including “the Microsoft Bing Ads Tracker, the Meta Tracker, the TikTok Tracker, the Snapchat Tracker and the Criteo Tracker,” to obtain plaintiff’s private user information, including “Plaintiff’s IP addresses, device characteristics, browser types, page navigation behavior, ... unique tracking cookies,” URLs of visited pages, and plaintiff’s associated behavioral data, including, inter alia, “page views, click events, session duration, and identifying browser characteristics,” without a first obtaining a court order or plaintiff’s consent.
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		(See Pen. Code, § 638.51, subd. (a), (b)(5); see also Compl. ¶¶ 1-13, 35-37, 45-47, 67-125.) Contrary to defendant's contentions, nothing in the complaint shows or suggests it is a provider of electronic communication service within the meaning of Penal Code section 638.51, subdivision (b). (See Pen. Code, § 638.51, subd. (b).) Second cause of action for violation of Penal Code section 502. The complaint fails to state facts sufficient to constitute the second cause of action for violation of Penal Code section 502. Specifically, the complaint fails to allege facts showing plaintiff has suffered any "damage or loss" by reason of the alleged violation. (See Pen. Code, § 502; CACI No. 1812 [elements].) Third cause of action for violation of Unfair Competition Law (UCL), Business and Professions Code section 17200. The complaint fails to state facts sufficient to constitute the third cause of action for violation of the UCL. (Bus. & Prof. Code, § 17204 [standing]; Archer v. United Rentals, Inc. (2011) 195 Cal.App.4th 807, 815 (Archer) [to allege standing under the UCL, a plaintiff must suffer injury in fact and have lost money or property]; see also Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 323.) The complaint merely alleges the loss of plaintiff's "valuable personal [digital] data." (Compl. ¶¶ 137-138.) This is insufficient; "plaintiff[] fail[s] to demonstrate how such [a] privacy violation translates into a loss of money or property." (Archer v. United Rentals, Inc. (2011) 195 Cal.App.4th 807, 816; see Folgestrom v. Lamps Plus, Inc. (2011) 195 Cal.App.4th 986, 993-994 [no allegation as to how plaintiff's home address constitutes his "intellectual property" in the first place, or how the sale of such information caused plaintiff economic injury for purposes of UCL standing]; see also Shah v. Capital One Financial Corporation (N.D. Cal. 2025) 768 F.Supp.3d 1033, 1048
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		[personal information does not constitute property; even if a company made money off of the sharing or use of a plaintiff's information, that company's gain of money does not equal a plaintiff's loss of money or property].) Request for judicial notice. Defendant's request for judicial notice is DENIED as to exhibits C-E, and GRANTED as to the remainder. (See Bolanos v. Superior Court (2008) 169 Cal.App.4th 744, 761 [trial court rulings have no precedential value]; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 45, fn. 9 [court may take judicial notice of published legislative history].) Defendant shall give notice.
8	Hoverson vs. Angels Baseball LP 2023-01367831	1. Motion for Summary Judgment and/or Adjudication 2. Motion to Seal Defendant Angels Baseball LP's motion for summary judgment is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Both parties' evidentiary objections are OVERRULED. Some of plaintiffs' opposition documents were not timely filed or served. The Court exercises its discretion to consider these late documents, particularly as moving defendant's Reply papers address their merits, and do not show that moving defendant was prejudiced by the late filing / service. (Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262 [court's discretion whether to accept or reject late filings]; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [same]; Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits

		can waive service defect even if timeliness objection raised, absent request for continuance and/or showing of prejudice].) There are triable issues of material fact as to causation, given conflicting expert testimony on this element. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917 [negligence elements]; Espinosa v. Little Co. of Mary Hospital (1995) 31 Cal.App.4th 1304, 1315-1316, citing Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402-403 ["The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony"]; Moving Party Separate Statement, Fact No. 24, and evidence cited in support thereof; Responding Party Separate Statement, response to Fact No. 24, and evidence cited in support thereof; see also Responding Party Separate Statement of Additional Facts, Fact Nos. 55-66, and evidence cited in support thereof.) Moving party's notice of motion only seeks summary judgment, and does not seek summary adjudication in the alternative; in such cases, the court cannot grant summary adjudication. (Jiminez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534-535, citing Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545-1546.) As such, triable issues as to causation are alone sufficient to deny the motion. (Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 830 [single triable issue requires denial].) In any event, even assuming without deciding that moving party's duty is limited only to timely summoning medical aid (moving papers at 4:15-5:9), which is disputed by the opposition, there are also triable issues as to whether moving party timely and properly satisfied this duty, so as to create triable issues as to the element of breach as well. (Moving Party Separate Statement, Fact Nos. 2-4, and evidence cited in support thereof [alleged response within one minute]; Responding Party Separate Statement, response to Fact No. 2, and evidence cited in
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	support thereof [disputing timeline]; see also Responding Party Separate Statement of Additional Facts, Fact Nos. 33, 34, 36, 37, 42, 44-46, and evidence cited in support thereof [responding ushers not trained on hand signal used to “activate the facility’s ERS [Emergency Response System], and initial call for aid apparently relaying the nature of the emergency as an allergic reaction, causing Joffe personnel to respond without an available AED].) Motion to Seal. Defendant Angels Baseball LP’s motion to seal documents is DENIED. (Cal. Rules of Court, Rules 2.550, 2.551; NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218 [findings required to seal documents embody constitutional requirements protecting the First Amendment right of public access].) While public safety procedures and protocols appear to be proper subjects of sealing, the proposed sealing is not “narrowly tailored.” (Cal. Rules of Court, Rule 2.550, subd. (d)(4).) Further, a stipulated protective order is insufficient grounds to seal. (Cal. Rules of Court, Rule 2.551, subd. (a) [“The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties”].) Defendant shall give notice of all the above. Motion for Summary Judgment First, there are clearly triable issues of fact regarding causation, resulting from the parties’ “dueling” expert declarations. As MP has not sought summary adjudication in the alternative, the triable issues re: causation require denial of the motion. Further, even if
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		Moving Party (MP) had properly sought summary adjudication in the alternative, and even if MP is correct that its duty is limited, there are triable issues as to breach, even under the limited duty described in the moving papers. General authority. CCP 437c states in relevant part: (a)(1) A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact. ... (f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a
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		claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (2) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. On summary judgment / adjudication, the moving party's papers are strictly construed, while the opposing party's papers are liberally
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	construed. (Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment / adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.) Here, the Complaint alleges a single C/A for wrongful death due to negligence. "The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs." (5 Witkin, Cal. Proc. 5th (2008), Chapter V, "Pleading," § 938, p. 352.) The elements of negligence are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Late Opp docs. Responding Parties' (RPs) Opp was due 8-21-26. (CCP 437c(b)(2) [Opp due 20 days prior to MSJ hearing].) RPs timely filed and served their Opp P&As (ROA 250), their own separate statement of additional facts (ROA 246), their evidentiary objections to MP's evidence (ROA 254), and their own expert declarations (ROA 248, 252, 256). However, RPs did not timely file or serve their response to MP's Separate Statement (ROA 258), or importantly, the declaration of RP attorney Suba (ROA 262), which authenticates all of RP's evidence. RPs also did not file or serve their documentary evidence timely [as of the time of this workup, these documents were still pending
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		imaging in the e-filing queue]. These latter documents were served 8-23-26; ROA 258 and 262 were not filed until 8-24-26. "[A] trial court has broad discretion to accept or reject late-filed papers." (Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; see also Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [same].) If the court, in its discretion, refuses to consider a late-filed paper, the minutes or order must so indicate. (CRC 3.1300(d).) The Court exercises its discretion to consider the late Opp documents. MP only addresses untimeliness in its Reply evidentiary objections [which is a procedural objection anyway, not an evidentiary one]. Further, MP's Reply documents also address the substance of the late Opp documents, including evidence authenticated by the late Suba Decl., showing that MP was not prejudiced by the late service. (See Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect even if timeliness objection raised, absent request for continuance and/or showing of prejudice]; see also Parkview Villas Assoc., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1211 [trial court abused discretion in refusing to continue MSJ hearing for plaintiffs to correct deficient Opp papers; "the proper response in most instances, if the trial court is not prepared to address the merits of the motion in light of the deficient separate statement, is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error"].) Moreover, while MP's Reply Separate Statement is procedurally improper as discussed below, it also shows that MP was not prejudiced by the fact that RPs' responsive separate statement was untimely, as it responds to RPs' [late] evidence. MP Reply Separate Statement.
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		With the Reply, MP submitted a Reply Separate Statement, responding to RP's opposing Separate Statement of additional facts (ROA 246), which is improper. (CCP 437c(b)(4) ["The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers"]; <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252 ["no provision" in former version of CCP 437c for a "reply separate statement"].) In any event, since there are triable issues as to both elements challenged by the moving papers, it does not make any difference whether or not the Reply Separate Statement is considered. RP evidentiary objections. [ROA 254.] 1. Overruled. RPs object to Dr. Thomas' incorporation of his report (MP Ex. P), but their cited authority (<i>Keniston v. American Nat. Ins. Co.</i> (1973) 31 Cal.App.3d 803) does not stand for the proposition that a declaration cannot incorporate a separate report. Other objections lack merit. 2. Overruled. [Same as Objection No. 1.] 3. Overruled. [Same as Objection No. 1.] 4. Overruled. [Same as Objection No. 1.] 5. Overruled. Sanders' declaration includes sufficient facts to substantiate his statement that the surveillance video footage accurately depicts the "locations" shown therein, even if not the "events" or "individuals" depicted. (See <i>Ambriz v. Kelegian</i> (2007) 146 Cal.App.4th 1519, 1528 [error to sustain evidentiary objection where "at least some portion of the proffered deposition testimony" was not objectionable].) 6. Overruled. The Sanders Decl. adequately authenticates the video exhibits. Whether or not the cited portions thereof actually support the UMFs for which they are cited in the moving Separate Statement, does not mean that the Sanders Decl. itself is inadmissible. 7. Overruled.
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		MP evidentiary objections. With the Reply, MP submitted extensive evidentiary objections to virtually all of RPs' evidence. The Court overrules all of MP's objections to RP's evidence. Whether certain evidence was timely filed/served (objection nos. 1, 19) is a procedural objection, not an evidentiary one. Whether "[n]egligent undertaking creates potential liability only for Joffe, the provider of emergency medical services, not ABLP" is a legal argument, not an evidentiary objection. (Objection nos. 20-30.) Numerous evidentiary objections also cite large portions of the material objected to, and/or object to entire declarations / exhibits, but the asserted objections do not apply to the entirety of the material to which MP objects. (Ambriz v. Kelegian, supra at 1528.) Moreover, whether RPs' experts relied upon sufficient evidence in reaching their causation opinions, goes to the weight of RPs' expert declarations, not their admissibility. MP has only sought summary judgment, and does not seek summary adjudication in the alternative. First, as noted above, and as the Opp correctly points out, MP's notice of motion seeks summary judgment only, and does not seek summary adjudication in the alternative. Where MP's Notice of Motion is for summary judgment only, the court cannot grant summary adjudication. (Jiminez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534-535, citing Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545-1546.) As such, the existence of any triable issue defeats the motion. (Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 830 [single triable issue requires denial].) The motion is denied due to triable issues. MP challenges the elements of breach and causation. Addressing the second element first, it is patently evident that the parties have submitted conflicting evidence as to
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		causation. (See MP Separate Statement, UMF 24; see also RP Separate Statement [ROA 258], response to UMF 24, and RP Separate Statement of Additional Material Facts [ROA 246], AMF Nos. 55-66.) "The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony." (Espinosa v. Little Co. of Mary Hospital (1995) 31 Cal.App.4th 1304, 1315-1316, citing Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402-403.) Accordingly, the "dueling" expert testimony here sufficiently creates triable issues of material fact as to causation. As noted above, since MP has only moved for summary judgment, and has not moved for summary adjudication in the alternative, these triable issues as to causation are alone sufficient to deny the motion. (Huynh v. Ingersoll-Rand, supra at 830.) As to the element of breach, MP contends that its duty is limited to timely summoning medical aid, which MP contends occurred when its ushers responded to calls for help in under one minute. (Moving papers at 4:15-5:9; UMF 2-4.) MP largely relies on Verdugo v. Target Corp. (2014) 59 Cal.4th 312, which held in relevant part: All the parties in this case agree that, under California law, Target has a common law duty to provide at least some assistance to a patron who suffers a sudden cardiac arrest while shopping at a Target store. The parties sharply disagree, however, as to the scope of that duty. Target maintains that its employees fully satisfied its common law duty of reasonable care by immediately summoning emergency medical personnel upon learning of the patron's collapse, and that at most it might be required to provide simple first aid measures but that it had no duty to acquire an AED in advance of the incident for potential use in the event of such a medical emergency. By contrast, plaintiffs assert that because of the important
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	potentially life-saving role that an AED may play in the event of sudden cardiac arrest, the size of the Target store in question, the number of customers who patronize the store, and the relatively low cost of an AED device, Target's common law duty of reasonable care to its patrons included an obligation to obtain an AED, and that a jury could properly find that Target acted unreasonably and negligently in failing to do so and that such negligence was a substantial cause of the sudden-cardiac-arrest victim's death. We have no occasion in this case to determine whether a business entity's common law duty to provide assistance to an injured or ill patron never requires a business to do anything more than to promptly summon emergency medical assistance, as Target suggests, or whether a business's common law duty of reasonable care, in some circumstances, may require it to take some additional measures beyond summoning emergency medical assistance. Plaintiffs' claim in this case rests solely on Target's failure to acquire and make available in its department store an AED for use in a medical emergency. Accordingly, we limit our consideration to this issue only. [Citation.] ... we conclude that the common law duty of reasonable care that Target owes to its business patrons does not include such an obligation. (Id. at 336–337, emphasis added; see also Powers v. City of Richmond (1995) 10 Cal.4th 85, 109 [“the positive authority of an appellate opinion is coextensive only with the facts presented by the case”].) MP also relies on Breaux v. Gino's, Inc. (1984) 153 Cal.App.3d 379, 382 [“It is well established that restaurants have a legal duty to come to the assistance of their customers who become ill or need medical attention and that they are liable if they fail to act ... a restaurant meets its legal duty to a patron in distress when it summons medical assistance within a reasonable time”], and Rotolo v. San Jose Sports & Entertainment, LLC (2007) 151 Cal.App.4th 307, 315 [“In regard to the
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	extent of the duty of a landlord or business proprietor to come to the aid of a sick or injured invitee, courts have found that sound policy limits the extent of this duty to promptly summoning emergency services”].) RP’s Opp spends much paper disputing that MP’s duty is so limited. However, even assuming without deciding that MP is correct as to the scope of its duty, there are also triable issues as to whether MP timely, and properly, satisfied such duty. First, MP relies on UMF 2-4, which state: 2. ABLP’s personnel responded to calls for help from Cuadras and Ledbetter, and ABLP personnel arrived within twenty feet of Decedent in response to these calls within thirty seconds of the calls starting. 3. ABLP’s personnel responded to calls for help from Cuadras and Ledbetter, and ABLP personnel arrived within twenty feet of Decedent in response to these calls within thirty seconds of the calls starting. 4. ABLP’s usher Ken Flynn placed a call via radio into Angel Stadium Command Center at approximately 6:00 p.m., once he arrived at Decedent’s position and observed Decedent’s condition, which was received by Jesse Ceja (“Ceja”), the dispatcher for Joffe Emergency Services (“Joffe”), ABLP’s EMT contract services provider. However, RPs’ Opp disputes this timeline, noting that MP’s evidence does not establish any onset time, but only when the video footage begins; that RP’s opposing evidence indicates a possible earlier onset, and that “the precise time of onset is a disputed question of fact.” (RP Separate Statement, response to UMF 2.) Thus, the evidence shows triable issues of material fact as to whether MP in fact timely or promptly summoned aid. RP’s evidence also shows that MP’s training materials prescribe a raised clenched fist as the hand signal “used when you need immediate help for a potential emergency
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	situation,” which signal “should activate the facility’s ERS [Emergency Response System].” (RP AMF 33, 34.) However, the responding ushers (Flynn and Rafiello) testified that they had never been trained on this signal and did not know what it meant. (RP AMF 36, 37.) This also is sufficient to raise triable issues of material fact as to whether MP in fact properly satisfied any limited duty to call for medical aid. This is particularly true in light of RPs’ other evidence that MP’s initial call for aid apparently relayed the nature of the emergency as an allergic reaction, causing Joffe personnel to respond without an available AED. (RP AMF 42, 44-46.) RP’s discovery continuance request. Since the motion is denied on the merits, the Court need not address RP’s request for a discovery continuance. However, it should be noted that RP attorney’s declaration is deficient in this respect. “If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (CCP 437c(h).) Here, RP attorney Suba’s declaration shows only that RP has been unable to serve a deposition subpoena to witness John Rivers. (Suba Decl., Para. 21.) The Opp contends that Rivers is a supervisor for Joffe who first responded to decedent, and that his deposition is necessary to establish “the content of the initial dispatch, the reason no defibrillator accompanied the first response, and the provenance of the statements attributed to the first responder in Joffe’s post
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	incident documents.” (Opp at 20:1-4.) None of this information is in RP attorney’s declaration; thus, the “facts necessary to justify opposition” are thus not in any “affidavit” as required by CCP 437c(h). (Gilman v. Dalby (2021) 61 Cal.App.5th 923, 940 [“statements in motions are not evidence”]; Combs v. Skyriver Communications, Inc. (2008) 159 Cal.App.4th 1242, 1270 [discovery continuance denied because “counsel’s supporting declaration did not explain why the information in the requested documents was essential to opposing Tayebi’s motion”].) Motion to Seal The Court denies, without prejudice to a later motion with narrower redactions [or a continuance for MP to propose narrower redactions]. Unless confidentiality is required by law, court records are presumed to be open to the public. (CRC 2.550(c).) A request to seal must be directed at specific material in the record, specifically identify that material, demonstrate an overriding interest that overcomes the right of public access to the material and a substantial probability the interest will be prejudiced absent sealing, and be supported by declarations setting forth specific facts in support of the request. (CRC 2.550(d)-(e), 2.551(a)-(b); H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.) The court may order a record sealed only upon making express findings that: “(1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest.” (CRC 2.550(d); McNair v. National Collegiate Athletic Association
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		(2015) 234 Cal.App.4th 25, 29.) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (See NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.) If a motion to seal is granted, the "order sealing the record must: [¶] (A) Specifically state the facts that support the findings; and [¶] (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file." (CRC 2.550(e)(1).) "In its order, the court must identify the facts supporting its issuance ... [t]he findings themselves, however, may be set forth in fairly cursory terms ... [i]f the trial court fails to make the required findings, the order is deficient and cannot support sealing." (Overstock.com, Inc. v. Goldman Sachs Group, Inc. (2014) 231 Cal.App.4th 471, 487.) Here, MP seeks an order sealing large portions of the deposition transcripts of various witnesses (MP Exs. B, D, E, F, and H). The moving papers do not describe the specific documents and/or portions of documents to be sealed. Rather, MP merely states that it has filed an unredacted version (ROA 239) and a redacted version (ROA 226), essentially leaving it to the court to compare the two. MP first contends that sealing is warranted because the redacted material "contain[s] information regarding Angel Stadium's emergency response procedures, security infrastructure information, and confidential designations under the Protective Order," and "may be sealed because disclosure would implicate public policy interests regarding public safety, may violate Plaintiffs' right to privacy by disclosing Decedent's medical information, and reveal materials protected
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		under the Protective Order.” (Moving papers at 2:11-15.) MP makes a good point that sealing information regarding its security measures, protocols, and surveillance capabilities should be kept confidential in order to preserve public safety, particularly given the facility’s high profile and public access. (See moving papers at 3:2-17.) This would satisfy CRC 2.550(d)(1)-(3) [an overriding interest overcoming the right to public access, which supports sealing the record, and a substantial probability that the overriding interest will be prejudiced if the record is not sealed]. However, MP’s proposed sealing is not narrowly tailored. (CRC 2.550(d).) For example, MP seeks to seal the entirety of p. 13 of witness Ledbetter’s deposition transcript (MP Ex. B), which addresses when decedent and his party arrived at the stadium, and where they were seated, neither of which appears related to safety issue or protocols. MP also seeks to seal the entirety of p. 35 of that same deposition transcript, which discusses the deponent’s testimony that a video of the incident is incomplete. MP has lodged three different videos as exhibits (MP Exs. C, I, and M), but it cannot be determined from the depo testimony if any of these videos is the subject of the depo testimony at p. 13, or if so, which one. [Rather, it may be that MP is seeking to redact this testimony because it suggests video manipulation, which is potentially embarrassing, although there is no evidence that this in fact occurred.] MP also seeks to seal p. 10 of the depo transcript of Angels usher Flynn (MP Ex. C), which includes some simple background information of the incident and Flynn’s employment, and which does not appear to be related to safety concerns either. Similarly, MP seeks to seal the entirety of p. 19 of the depo transcript of Angels usher Raffaniello (MP Ex. E), and p. 5 of EMT Ceja’s deposition (MP Ex. F), which similarly include simple background information, and which does not appear to be safety-related.
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		Thus, as can be seen, MP has not shown that the proposed sealing is narrowly tailored, as to the safety issues. MP's arguments as to decedent's privacy rights (moving papers at 3:18-4:1) also have facial appeal, but this argument rings hollow, in light of the limited information actually redacted, as well as the face of other exhibits containing private medical information that MP has not requested be redacted or sealed at all. For example, the coroner's report (MP Ex. N) contains detailed descriptions of decedent's body and other medical information / observations that could be considered private, but Ex. N is almost entirely unredacted. MP also contends that sealing is warranted because "the Parties produced and designated the Confidential Exhibits pursuant to the Parties' Protective Order, reflecting their bargained-for expectation of confidentiality." (Moving papers at 4:2-3.) However: "The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties." (CRC 2.551(a).)
9	Barrett vs. Southern California Edison 2025-01467144	Motion for Summary Judgment and/or Adjudication Defendant Southern California Edison Company's Objections to Plaintiff Brad Barrett's Separate Statement of Disputed Material Facts, filed on August 31, 2026 are OVERRULED in their entirety. Plaintiff Brad Barrett's Objections in his Opposition Separate Statement are not considered. Objections may not be included in the Separate Statement. They are not properly before the Court.

	Defendant Southern California Edison Company's ["SCE"] Motion for Summary Judgment is DENIED. SCE's Motion is based entirely upon the ground that the action is barred by the statute of limitations, CCP 338(d). SCE has the burden of proof on its affirmative defense. It must show that the limitations period accrued more than three years before this action was filed. SCE has not done so. Resolution of statute of limitations is normally a question of fact. [Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal4th 797, 810 Only when uncontradicted facts established through discovery are susceptible of one legitimate inference is summary judgment proper. [NBC Universal Media, LLC v. Superior Court (2014) 225 Cal.App.4th 1222, 1231] Here, to the extent the facts concerning the date of accrual are known, they are not uncontroverted nor are they susceptible of only one legitimate inference. Evidence offered by SCE to support their argument that Barrett knew or should have known the facts giving rise to his causes of action no later than 05/21 does not establish the date of accrual. SCE's argument relies upon inferences and even speculation about what Barrett knew and when he knew it. Even if the facts relied upon were uncontroverted, they are not sufficient to establish an inference about the date the statute of limitations accrued. SCE did not meet its burden to show that this action is barred by the statute of limitations. Even if SCE had met its burden of showing this action is barred, Barrett controverted the showing. He says that he did not know he did not know he needed to have three-phase power. [Plaintiff Barret's Separate Statement of Disputed Facts, 24, 26] SCE employee Jeffrey Azaula admitted that SCE had told Barrett that SCE had told him he could not get three-phase power." [Id., fact 27] A reasonable trier of fact could find in Barrett's favor.
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		The Court concludes the date of the accrual of the causes of action asserted in this case is a triable issue of material fact. The trial date remains. Moving party shall give notice.
10	Parker vs. City of Garden Grove 2025-01474666	Demurrer to Amended Complaint Defendant City of Garden Grove's unopposed Demurrer to the First Amended Complaint is SUSTAINED. Plaintiff Ana Christina Parker, in pro per, filed an untimely opposition which the Court has read and considered. Governmental Immunities Government Code section 818.4 provides that public entities are not liable for injuries "caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." Further, Government Code section 820.2 provides that "a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." Section 821.2 of the Government Code provides that "[a] public employee is not liable for an injury caused by his issuance . . . of . . . any permit . . . where he is authorized by enactment to determine whether or not such authorization should be issued. ..."

		The issuance of building permits is a discretionary function. (Thompson v. City of Lake Elsinore (1993) 18 Cal.App.4th 49, 57.) In this case, Plaintiff's causes of action are all based on her claim that the City is liable for issuing building permits to her neighbors. Based on the foregoing authorities, the City and its employees are immune from liability for issuing such permits. Accordingly, the demurrer to the FAC and each cause of action alleged therein is SUSTAINED on this ground. First Cause of Action – Inverse Condemnation "To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff's property." (Wildensten v. East Bay Regional Park Dist. (1991) 231 Cal.App.3d 976, 979-980.) A city is not liable in inverse condemnation for injury to private property within a subdivision from completely private construction – privately designed, financed and build – on a private street where the city's sole affirmative action was the issuance of permits and approval of the subdivision map. (Yox v. City of Whittier (1986) 182 Cal.App.3d 347, 353.) Similarly, the City's only alleged conduct was the issuance of building permits for a private construction. The FAC indicates the construction occurred on private property and for private use. There are no allegations the project was intended for public use. Accordingly, the demurrer to the first cause of action is SUSTAINED. Second Cause of Action – Private Nuisance The FAC alleges the City's actions and omissions created conditions that substantially interfered with Plaintiff's use and
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	enjoyment of her property and constituted a private nuisance. (FAC, ¶¶ 32-33.) A public entity does not have a mandatory duty to abate a nuisance. (See Fox v. County of Fresno (1985) 170 Cal.App.3d 1238, 1239.) Therefore, the City cannot be liable for failing to abate any alleged private nuisance. Additionally, Government Code section 818.2 provides that "a public entity is not liable for an injury caused by ... failing to enforce any law." Accordingly, the demurrer to the second cause of action is SUSTAINED. Third Cause of Action – Negligence The Government Claims Act ("Act") provides that "[e]xcept as otherwise provided by statute... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815(a).) Any claim of negligence must therefore be based on statute. Here, Plaintiff has not identified any statute violated by the City that would give rise to a negligence claim against the City. In opposition, Plaintiff agrees to remove the cause of action from her complaint. Accordingly, the demurrer to the third cause of action is SUSTAINED without leave to amend. Fourth Cause of Action – Injunctive Relief An injunction may be either mandatory or prohibitory. A prohibitory injunction is "a writ or order requiring a person to refrain from a particular act." (Code Civ. Proc. § 525.) A mandatory injunction requires a person to take affirmative action that changes the parties' position. (Civ. Code § 3367(2).)
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	Here, Plaintiff seeks a mandatory injunction to change the status quo by requiring action by the City – specifically to remove the structures constructed by Plaintiff’s neighbors on their private property. No facts have been alleged to show that the neighbors’ structures constitute an emergency, health risk or harm. Thus, there are no facts alleged to support the requested mandatory injunction. Further, Plaintiff’s injunction cause of action is improper because a request for an injunction is a remedy, not a cause of action. (Marlin v. Aimco Venezia, LLC (2007) 154 Cal.App.4th 154, 162.) A complaint with a stand-alone cause of action for injunctive relief is subject to demurrer. (Granny Purps, Inc. v. Cnty. Of Santa Cruz (2020) 53 Cal.App.5th 1, 9.) Accordingly, the demurrer to the fourth cause of action is SUSTAINED. Plaintiff has 15 days leave to amend, except as otherwise indicated herein. ***Plaintiff is admonished that the Court will not consider late filings in the future. Moving Party shall give notice.
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